

SENATE No. 262

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect life-saving electronic health records from reckless corporate greed and corruption.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 262

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 262) of Mark C. Montigny for legislation to protect life-saving electronic health records from reckless corporate greed and corruption. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 193 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect life-saving electronic health records from reckless corporate greed and corruption.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 16 of chapter 6D of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting at the end of subsection (a) the following
3 clause:-

4 (9) assist consumers with questions or concerns relating to electronic health information
5 accessibility requirements established by section 7 of chapter 118I, and record and submit
6 reported violations of said section to the executive office of health and human services, the
7 attorney general, and the Office of the National Coordinator, as defined in section 1 of chapter
8 118I.

SECTION 2. Section 7 of chapter 118I of the General Laws, as so appearing, is hereby amended by inserting at the end thereof the following paragraph:-

In order to ensure the seamless and secure access, exchange, and use of electronic health information, all providers in the commonwealth shall comply with the requirements imposed by the 21st Century Cures Act of 2016, P.L. 114-255, including, but not limited to, interoperability, patient access through application programming interfaces, and prohibitions on information blocking to health information technology developers, health information exchanges, health information networks, and health care providers. The executive office, in consultation with the commission, shall develop a standardized written notification form for providers to give to patients, informing patients of their rights and obligations as it pertains to their electronic health information and accessibility per federal and state law. Said notification forms may be provided electronically to patients and shall inform said patients on how to report violations of electronic health information access to the office of patient protection, established under section 16 of chapter 6D.

The executive office of health and human services shall promulgate regulations to prohibit the collection, capture, purchase, or transfer of electronic health information by third party application programming interfaces without the express written consent of the patient. Said written consent may be obtained by electronic means in a conspicuous and easy to read format. Said regulations shall prohibit third party application programming interfaces from disclosing, redisclosing, disseminating, selling, leasing, trading, or otherwise profiting from a patient's electronic health information unless it is to provide direct data access to the patient with their express written consent.

31 A violation of this section is punishable by a fine in accordance with section 8 of this
32 chapter and shall constitute an unfair or deceptive act in violation of chapter 93A.

33 SECTION 3. Section 8 of said chapter 118I is hereby amended by inserting after the
34 words “section 7” in the first sentence the following:- “; provided that violations involving
35 patient access to electronic health information, as reported by the commission’s office of patient
36 protection, shall be no less than \$1,000 per day per violation”

37 SECTION 4. This act shall take effect immediately upon its passage.